

F. CANONS OF STATUTORY CONSTRUCTION

In their impressive book, *Reading Law: The Interpretation of Legal Texts*, Justice Scalia and his coauthor, Professor Bryan Garner, reject legislative history and urge a renewed focus on canons of statutory construction.⁹⁰ Canons, after all, have long been looked to by courts to provide stable rules of construction. Many have existed across centuries, while others have developed more recently. The canons include such precepts as:

- every word of a statute must be given significance;
- repeals by implication are disfavored (a statute will not be considered as repealing prior acts on the same subject in the absence of express words to that effect, unless there is an irreconcilable repugnancy between them, or unless the new law is evidently intended to supersede all prior acts);
- the expression of one thing is the exclusion of another;
- penal statutes are to be interpreted narrowly;
- if the language is plain, construction is unnecessary;
- the starting point is the language of the statute;
- when a list of two or more descriptors is followed by more general descriptors, the otherwise wide meaning of the general descriptors must be restricted to the same class, if any, of the specific words that precede them.

Justice Scalia and Professor Garner argue that what they term “valid canons” of construction lead to more constrained and predictable judicial decisions. They identify thirty-seven sound principles of interpretation applicable to all texts, including such fundamental principles as “the words of a governing text are of paramount concern, and what they convey, in their text, is what the text means”;⁹¹ semantic canons

such as “words are to be understood in their ordinary, everyday meanings—unless the context indicates that they bear a technical sense”; syntactic canons such as “words are to be given the meaning that the proper grammar and usage would assign them”; and contextual canons such as the absurdity doctrine that “a provision may be either disregarded or judicially corrected as an error (when the correction is textually simple) if failing to do so would result in a disposition that no reasonable person could approve.”⁹²

Justice Scalia and Professor Garner set forth twenty principles applicable specifically to governmental prescriptions. They include: “expected meaning canons,” for instance, “the constitutional-doubt canon” that a statute should be interpreted in a way that avoids placing its constitutionality in doubt;⁹³ “government-structuring canons,” which include so-called clear statement canons, such as the precept that a statute does not waive sovereign immunity—and a federal statute does not eliminate state sovereign immunity—unless that disposition is unequivocally clear, and the canon that a federal statute is presumed to supplement rather than displace state law;⁹⁴ and “private-right canons,” such as the rule of lenity, whereby ambiguity in a statute defining a crime or imposing a penalty should be resolved in the defendant’s favor.⁹⁵ They also discuss thirteen “falsities”; for example, they view as false the notion that committee reports and floor speeches are worthwhile aids in statutory construction.⁹⁶

The usefulness of canons has long been debated. Karl N. Llewellyn argued in his classic work of more than six decades ago that for virtually every canon there is an equal and opposite canon that can be invoked to justify any decision.⁹⁷ This view has met with criticism,⁹⁸ and indeed I have found that universally accepted canons can be useful.⁹⁹ At the same time, canons have their limits as guides to adjudication. Judge Richard A. Posner put it this way:

"[T]here is no canon for ranking or choosing between canons; the code lacks a key."¹⁰⁰ Justice Scalia and Professor Garner forthrightly acknowledge: "No canon of interpretation is absolute. Each may be overcome by the strength of differing principles that point in other directions."¹⁰¹ Take, for example, the absurdity doctrine and the principle that texts should be interpreted as the words indicate, no matter what. The idea that a judge should be faithful to text no matter where it leads is seemingly at odds with the application of the absurdity doctrine. The application of the absurdity doctrine enlarges judicial discretion rather than constrains it, and that exercise of discretion seems at war with the textualist view that the use of canons will limit judicial choices.¹⁰²

More fundamentally, wiping out legislative history, in the face of empirical evidence that Congress views it as essential in understanding its meaning, leaves us largely with a canon-based interpretive regime that may not only fail to reflect the reality of the legislative process, but may also undermine the constitutional understanding that Congress's statutemaking should be respected as a democratic principle. Certainly, it is safe to assume that most legislators do not know that canons even exist—most legislators are not lawyers, and most lawyers are not trained in legislative drafting. Many years ago, former Congressman, and later judge, Abner J. Mikva observed: "[T]he only 'canons' we talked about were the ones the Pentagon bought that could not shoot straight."¹⁰³ And we would expect that while the staffs of the offices of legislative counsel may be familiar with the canons, understanding of the canons will more likely be uneven across committees, with the judiciary committees having the most knowledge. The comprehensive Gluck-Bressman study conclusively shows that congressional staffers are familiar with some canons and not others, and reject some canons of which they are aware. For example, while drafters cannot generally identify

by name the legal canon “*noscitur a sociis*” (ambiguous terms in a list are to be construed in reference to other terms on the list), they overwhelmingly accept that concept in drafting legislation.¹⁰⁴ But the study found that most respondents are not cognizant of and do not use “clear statement rules” (requiring statutory text to be unambiguous if it is to overcome canonical presumptions in particular areas of policy); do not use dictionaries; and view legislative history as a critical tool.¹⁰⁵

Whether or not Congress is aware of the canons, the courts can use them in ways that fundamentally shape outcomes differently than how Congress intended, as when courts impose clear statement canons. If legislative drafters are not cognizant of the clear statement rules, they risk writing legislation that faces court challenges that they could not have anticipated. Then, if Congress disagrees with the court’s decision, it will have to determine whether to overturn the court ruling with a new statute that in some way restores the legislative outcome that it had previously enacted.

It is, at least on first blush, appealing to think that canons could be crafted reflecting universal agreement in Congress, courts, and agencies.¹⁰⁶ But in the absence of such an understanding, in many cases the canons can be helpful only up to a point. Even if one were to arrive at shared conventions, it is problematic to interpret statutes, passed against the backdrop of then-existing judicial doctrines, in light of newly created canons. As Stephen Breyer, then the chief judge of the U.S. Court of Appeals for the First Circuit, wrote: “To change horses in midstream, suddenly to ignore a statute’s history when those who directly or indirectly helped to enact it expected the contrary, would defeat their expectations and, in a sense (if the change were sufficiently sudden and radical), those of the voters as well.”¹⁰⁷

At the end of the day, we are left with the ineluctable conclusion that whatever the value of canons, the value of legislative history

cannot be denied as an important indicator of legislative meaning, and that a court should be mindful of the preferences of the elected legislature.

G. CONCLUDING THOUGHTS

Chief Justice John Roberts, who makes use of legislative history, stated at his confirmation hearing that “[a]ll legislative history is not created equal. There’s a difference between the weight that you give a conference report and the weight you give a statement of one legislator on the floor. You have to, I think, have some degree of sensitivity in understanding exactly what you’re looking at....”¹⁰⁸ I concur. The task, as Senator Hatch commented, is to draw upon legislative history “properly applied” in “reliable forms,”¹⁰⁹ and to separate the wheat from the chaff among legislative materials. For courts, that means, in part, having a better understanding of the legislative process and its rules,¹¹⁰ and appreciating the internal hierarchy of communications. Conference committee reports and committee reports should sit at the top of authority, followed by statements of the bill’s managers in the Congressional Record, with stray statements of legislators on the floor—who had heretofore not been involved in consideration of the bill—at the bottom. To explain how I, as a judge, try to discern legislative meaning, drawing upon the materials of the legislative process, I focus in the next chapter on three cases in which I was the writing judge.

Some Cases I Have Decided

Most judges, in my experience, are neither wholly textualists nor wholly purposivists (that is, seekers of purpose). Purposivists tend not to go beyond the words of an unambiguous statute; at times, textualists look to purposes and extratextual sources such as dictionaries. What sets the two apart is a difference in emphasis and the tools they employ to find meaning.

In approaching the interpretive task, a judge can use several tools, including: text, statutory structure, history, word usage in other relevant statutes, common law usages, agency interpretations, dictionary definitions, technical and scientific usages, lay usages, canons, common practices, and purpose.¹ The judge's work takes place not on the lofty plane of grand, unified theory, but on the ground of practical, common-sense inquiry.² The judge pulls from the toolbox those instruments that can help extract "[u]seful [k]nowledge,"³ as Benjamin Franklin termed it, about what the statute means in light of congressional purposes. For example, the toolbox can help the judge appreciate the institutional context that may serve as a guide to understanding a statute's meaning. Statutes vary in design and substance,⁴ and so the interpretive task may change and the tools used may vary depending on the particular statutory issue at hand.

As I have noted, some statutes are precise, specific, and closed-ended, such that the text itself provides definitive direction. For

such statutes, as Justice David Souter said, “[t]he language is straightforward, and with a straightforward application ready to hand, statutory interpretation has no business getting metaphysical.”⁵ I have had many cases where resort to the text was all that I needed to resolve the case. Two examples suffice. In a case to which I alluded in the introduction, I had to interpret these words: “It shall be unlawful for any person to knowingly or intentionally purchase at retail during a 30 day period more than 9 grams of...pseudoephedrine base...in a scheduled listed chemical product....”⁶ The appellant (the person appealing the district court decision) had been convicted of purchasing 24.48 grams in a thirty-day period. Under the plain words of the statute, he unquestionably violated the law.⁷ In another case, I had to construe a section of a statute requiring proof that a defendant engaged in obstructive conduct “with the intent to impede, obstruct, or influence the investigation or proper administration of any matter within the jurisdiction of any department or agency of the United States.”⁸ The appellants asserted that the government was obligated to link their conduct with knowledge of a pending or imminent official proceeding at the time the statement was given and an intention to affect that proceeding. But the section at issue makes no specific reference to official proceeding. The appellants’ argument thus conflicted with the plain meaning of the statute. As my panel said: “The words of the statute are unambiguous, and, thus, ‘judicial inquiry is complete.’ ”⁹

Some statutes deal with subjects where words have specialized meanings. Tax law is an example, as its subtleties are not necessarily obvious in the text itself. Still other statutes are more open-ended in construction, such that agencies and courts must go beyond the text in the interpretive process. For instance, it is not self-evident what constitute “unfair methods of competition in or affecting commerce, and unfair or deceptive acts or practices in or affecting

commerce.”¹⁰ Nor is it self-evident what constitutes a “reasonable accommodation” under the Americans with Disabilities Act.¹¹ In deciphering statutes, we would do well to remember Justice Felix Frankfurter’s observation: “Unhappily, there is no table of logarithms for statutory construction.... One or another [item of evidence] may be decisive in one set of circumstances, while of little value elsewhere.”¹²

To examine more concretely approaches to statutory interpretation, and the challenges of construing statutes, I offer three cases in which I was the writing judge. I’ve chosen cases where the panel believed that there was a textual ambiguity that needed to be addressed and where the Supreme Court granted review. In two cases, the Supreme Court agreed, and in one the Court disagreed. One case shows the limits of simply relying on text (*Gayle*); the second, the importance of understanding statutory purposes (*Raila*); and the final case, the uses of legislative history (*Murphy*). To give a sense of how the court approached the case at hand, I often draw here directly from, or paraphrase closely, the language of the various judicial opinions I discuss. I leave the reader to reach her own conclusions about whether the courts’ decisions were persuasive.

Just a background note: When I consider statutory issues, it is in the context of an appeal from a decision of a federal district court, where cases generally originate in the federal system, and sometimes in the context of an appeal from a ruling of an administrative body, such as the Department of Justice’s Board of Immigration Appeals. Whereas a district court decision is the product of one district judge sitting alone, on the Court of Appeals, I decide cases with two other colleagues—the three of us constitute the panel. Judges are assigned to sit on panels, and all cases are assigned randomly to panels. When I have the assignment to write the opinion that explains the panel’s decision, I secure valuable input from my colleagues, and the

final product reflects collective decisionmaking. Parties dissatisfied with the decision of the Court of Appeals panel may seek review in the Supreme Court, although the Court rarely grants such review.¹³

A. *RAILA V. UNITED STATES*, 355 F.3D 118 (2D CIR. 2004), ENDORSED BY THE SUPREME COURT IN *DOLAN V. UNITED STATES POSTAL SERVICE*, 546 U.S. 481 (2006)

Understanding Statutory Purpose: Whether “negligent transmission” in the postal context refers only to the actual delivery of mail or more broadly to negligent actions occurring in the process of transmission

Raila v. United States is a case in which our panel (Richard Cardamone, Sonia Sotomayor, and I) had to make sense of what we perceived as an ambiguous statute where the legislative history was scant. In a case involving the same statute, the Third Circuit disagreed with our reading, and the Supreme Court agreed to review that case in order to resolve the circuit split. As you will see, the text provided few clues; indeed, under some readings it could have led to absurd results. It was thus necessary to go beyond the text per se to discern the statutory purpose animating the legislation.

Plaintiff Lenore Raila was injured when she slipped on a package that a postal worker had left just below her front door step. She filed suit against the United States under the Federal Tort Claims Act (“FTCA”),¹⁴ alleging that the proximate cause, i.e., the most direct cause, of her injuries was the negligence of the postal employee who placed the package where someone might slip on it. That 1946 statute broadly waived the United States’ sovereign immunity, that is, the privilege providing that it cannot be sued, with regard to suits

in tort. It conferred jurisdiction on the district courts to hear claims “for injury or loss of property, or personal injury or death caused by the negligent or wrongful act or omission of any employee of the Government while acting within the scope of his office or employment, under circumstances where the United States, if a private person, would be liable to the claimant in accordance with the law of the place where the act or omission occurred.”¹⁵ However, Congress carved out certain exceptions to this broad waiver of sovereign immunity. One exception, codified at 28 U.S.C. § 2680(b) (2000), commonly referred to as the “postal matter exception,” preserves sovereign immunity for “[a]ny claim arising out of the loss, miscarriage, or negligent transmission of letters or postal matter.”¹⁶

At issue in this case was the meaning of the phrase “negligent transmission.” Specifically, the question was whether the word “transmission” applies to the situation in this case, such that the government is immune to suit. The government moved to dismiss the complaint on the ground that the district court lacked subject matter jurisdiction, because the postal matter exception shields the government from liability. The judge on the U.S. District Court for the District of Connecticut who heard the case looked to the ordinary meaning of the statutory language and noted that *Webster’s Third New International Dictionary* defines “transmit” as “to cause to go or be conveyed to another person or place.” In addition, the judge cited other district court decisions that interpreted the postal matter exception. A district judge in Georgia found that transmission begins “when a postal patron deposits postal matter with the Postal Service and...end[s] when the postal matter [i]s delivered by the Postal Service to a third-party,” and thus the exception covered acts of negligence by Postal Service employees up to the point of delivery.¹⁷ And a New Jersey district judge held that the postal matter exception shielded the government from liability for negligent placement

of a package that resulted in a slip and fall.¹⁸ For these reasons, the district judge in Connecticut concluded that the government had not waived sovereign immunity in this kind of case and granted the government's motion to dismiss the complaint.

Ms. Raila appealed the judge's decision to the Court of Appeals, and the clerk of court randomly assigned the case to our panel. We unanimously reversed the district judge's decision.

Our panel observed that the Supreme Court had held that, in construing the exceptions to the FTCA's waiver of sovereign immunity, courts should look to the intent of Congress. "[W]e should not take it upon ourselves," the justices wrote, "to extend the waiver beyond that which Congress intended. Neither, however, should we assume the authority to narrow the waiver that Congress intended."¹⁹ The postal matter exception, to reiterate, excludes "[a]ny claim arising out of the loss, miscarriage, or negligent transmission of letters or postal matter." The issue that we had to resolve was whether "negligent transmission" refers only to negligence that results in loss of, or damage to, the postal material itself, or whether "negligent transmission" also encompasses the negligent placement of postal material that causes injury to someone or something other than the mail.

We first noted that statutory construction begins with the plain text, and, "where the statutory language provides a clear answer, it ends there as well."²⁰ We observed that in evaluating ambiguity we also look to the statutory scheme as a whole and place the particular provision within the context of that statute.²¹ To us, the meaning of the words "negligent transmission" was not self-evident. Because a postal worker's every step is, on some level, taken as part of the "transmission of letters [and] postal matter"—that being the business of the Postal Service—the phrase "negligent transmission" could plausibly embrace every negligent act by any postal employee.

In referring to “loss, miscarriage, or negligent transmission,” however, we thought it likely that Congress, in keeping with the concept of *noscitur a sociis*—the notion that the meaning of a word may be ascertained by reference to the meaning of the words associated with it—intended “negligent transmission” to be interpreted more narrowly, so as to be consonant with the words “loss” and “miscarriage.”²² The words “loss” and “miscarriage” refer only to damage and delay of the postal material itself and consequential damages therefrom. Interpreted this way, we concluded, the postal matter exception preserves sovereign immunity against claims for such damage, but it permits suits for other injuries, such as those that result from a slip and fall on a package that was left in the wrong place.

We observed that the Supreme Court, in interpreting the postal matter exception, noted that its language is narrower than the language of other exceptions to the FTCA.²³ For example, other statutes preserve sovereign immunity for any claim arising from the activities of the Tennessee Valley Authority²⁴ and the Panama Canal Company.²⁵ Another, codified in 28 U.S.C. § 2680(c), bars “[a]ny claim arising in respect of the assessment or collection of any tax or customs duty.”²⁶ However, the postal matter exception does not categorically bar all claims arising from the activities of the Postal Service, but only those arising from the loss, miscarriage, or negligent transmission of letters or postal matter. As the Supreme Court observed in *Kosak v. United States*:

The specificity of § 2680(b), in contrast with the generality of § 2680(c), suggests, if anything, that Congress intended the former to be *less* encompassing than the latter. The motivation for such an intent is not hard to find. One of the principal purposes of the [FTCA] was to waive the Government’s immunity from liability for injuries resulting from auto accidents in which

employees of the Postal System were at fault. In order to ensure that § 2680(b), which governs torts committed by mailmen, did not have the effect of barring precisely the sort of suit that Congress was most concerned to authorize, the draftsmen of the provision carefully delineated the types of misconduct for which the Government was not assuming financial responsibility—namely, “the loss, miscarriage, or negligent transmission of letters or postal matter”—thereby excluding, by implication, negligent handling of motor vehicles.²⁷

The government’s attorneys did not contest that one of the primary purposes of the FTCA was to waive the sovereign immunity of the United States for accidents caused by the negligence of postal employees driving postal vehicles—and that the postal matter exception was never intended to bar such claims. If that exception does not prevent such claims, as we thought the government correctly asserted, we saw no logical reason to bar claims resulting from the negligence of the postal employee who places a package where someone might slip on it.

We next considered the relatively limited legislative history of the FTCA with respect to the provision at issue. A committee report on a prior version of the legislation noted that “the common-law torts of employees of regulatory agencies would be included within the scope of the bill.... Thus, [the exceptions] ... are not intended to exclude such common-law torts as an automobile collision caused by the negligence of [a government employee].”²⁸

At a hearing in 1940 on a previous version of the legislation before a Senate subcommittee, Abraham Holtzoff, a Special Assistant to the Attorney General, testified that “[e]very person who sends a piece of postal matter can protect himself by registering it, as provided by the postal laws and regulations. It would be intolerable,

of course, if in any case of loss or delay the Government could be sued for damages. Consequently, this provision was inserted.”²⁹ We believed that this testimony suggested that the purpose of the postal matter exception was to shield the government from liability arising from loss of or harm to the mail itself, not for injuries caused by the common law torts of postal employees. In interpreting the postal matter exception, a district judge—citing the Holtzoff testimony—found that “Congress was concerned with shielding the courts from the potential landslide of lawsuits that might be generated by the unavoidable mishaps incident to the ordinary, accepted operation of delivering millions of packages and letters each year.”³⁰ The judge sensibly concluded that where the nature of the injury was such that the injured party could not protect himself or herself by registering the parcel, the postal matter exception did not apply.

Further, our panel believed that the government’s interpretation would lead to absurd results. For example, consider a situation in which a Postal Service employee is driving a postal truck in the course of a mail delivery route. The driver throws a package toward the home to which it is to be delivered. The package hits a pedestrian and causes injury. At the same time, the driver has taken his eye off the road, and the truck strikes another pedestrian, killing him. Under the government’s proposed interpretation of “negligent transmission,” the government would be liable for the injury caused by the truck, but not by the flying package.

Our panel also considered a situation in which two customers enter a post office and one turns right, the other turns left. Both slip on puddles of water that had been created through the negligence of postal employees. One puddle was created when a postal worker negligently dropped a parcel, shattering a vessel containing liquid. The other puddle was created by the janitor, who failed to wipe

away all the water when washing the floor. Under the government's proposed construction of "negligent transmission" the government would be liable for the injury caused by the janitor's puddle, but not for the injury caused by the shattered vessel, because the latter negligence occurred during the "transmission" of postal material. At oral argument, the government agreed that in each of these two hypothetical situations, there would be liability to one plaintiff but not the other. Those results, we believed, are plainly absurd and caution against adoption of the government's interpretation of the statute.

The government's lawyers had told us that rejecting its interpretation could result in a large volume of litigation. We said that we could not predict with any certainty the consequences of our holding. In any event, our task was not to make policy, but rather, constrained by the words of the statute, to interpret its language consistent with the intent of Congress. We pointed out that Congress has the capacity to amend the statute to render the government immune from similar actions and can do so if it wishes. Accordingly, we held that the postal matter exception did not bar Raila's claims and that the district judge erred in dismissing the complaint for lack of subject matter jurisdiction.

The Third Circuit Disagrees: Dolan v. United States Postal Service, 377 F.3d 285 (3d Cir. 2004)

Not long after our panel announced its decision, a panel of the Court of Appeals for the Third Circuit considered the same issue. A postal customer, Barbara Dolan, brought suit against the government under the FTCA seeking to recover for injuries suffered when she tripped over mail negligently left on her porch by a mail carrier. Noting that our decision interpreted "negligent transmission" to be

limited to the loss or miscarriage of postal material, the Third Circuit forthrightly stated:

We disagree with that holding. To the extent that “negligent transmission” is ambiguous at all, any ambiguities in the language of a purported waiver of sovereign immunity must be construed in favor of the government. Construing 2680(b) in such a way is made all the easier by the statute’s expansive language. The phrase “[a]ny claim arising out” evinces Congress’s intent to broaden rather than limit the exception for “negligent transmission of letters or postal matter.” Moreover, § 2680(b)’s legislative history makes plain that Congress intended to protect the government from lawsuits that might be generated by the unavoidable mishaps incident to the ordinary accepted operations of delivering millions of packages and letters each year.³¹

The Supreme Court Resolves the Circuit Split: Dolan v. United States Postal Service, 546 U.S. 481 (2006)

With the Second and Third Circuits in disagreement, the Supreme Court granted a writ of certiorari in *Dolan* and heard the appeal. (The Court is not required to resolve disagreements among courts of appeals, known as “circuit splits,” but it will often do so if it believes the issue needs resolution.) The high court sided with our decision, and reversed and remanded the case to the Third Circuit (i.e., sent the case back to the Court of Appeals to reconsider in light of the Supreme Court decision). Justice Kennedy wrote the majority opinion, joined by Chief Justice Roberts, and Justices Stevens, Scalia, Souter, Ginsburg, and Breyer. Justice Thomas filed a dissenting opinion, and Justice Samuel Alito took no part in the case.

The Court assumed that under the applicable state law a person injured by tripping over a package or bundle negligently left by a private party would have a cause of action for damages. The question was whether the postal matter exception preserves sovereign immunity in such a case. The Court acknowledged that “negligent transmission,” considered in isolation, could embrace a wide range of negligent acts committed by the Postal Service in the course of delivering mail, including creation of slip-and-fall hazards from leaving packets and parcels on the porch of a residence. “After all,” Justice Kennedy wrote, “in ordinary meaning and usage, transmission of the mail is not complete until it arrives at its destination.”³² He referred, for example, to *Webster’s Third New International Dictionary*, which defines “transmission” as “an act, process, or instance of transmitting” and “transmit” as “to cause to go or be conveyed to another person or place.” In large part, the majority opinion said, this inference—transmission includes delivery—led the district court and court of appeals in the *Dolan* case to rule for the government. However, asserted Justice Kennedy, interpretation of a word or phrase depends upon reading the whole statutory text, considering the statute’s purpose and context: here, both context and precedent require reading the phrase so that it does not go beyond negligence that causes mail to be lost or to arrive late, in damaged condition, or at the wrong address.

Starting with context, he wrote that in the statute the term “negligent transmission” follows the terms “loss” and “miscarriage.” Those terms, he continued, limit the reach of “transmission.” Justice Kennedy looked to the more colloquial version of *noscitur a sociis* when he stated that “a word is known by the company it keeps”—a rule that ‘is often wisely applied where a word is capable of many meanings in order to avoid the giving of unintended breadth to the Acts of Congress.’”³³ Here, Justice Kennedy noted that mail is “lost”

if it is destroyed or misplaced and “miscarried” if it goes to the wrong address. Since both terms refer to failings in the postal obligation to deliver mail in a timely manner to the right address, the Court determined that it would be odd if “negligent transmission” swept far more broadly to include injuries caused by postal employees but involving neither failure to transmit mail nor damage to its contents.

This interpretation, the Court found, was also supported by the Court’s previous decision in *Kosak*, which noted that one of the FTCA’s purposes was to waive the government’s immunity from liability for injuries resulting from auto accidents involving postal trucks delivering—and thus “transmitting”—the mail. Nothing in the statutory text, Justice Kennedy commented, supported a distinction between negligent driving, which the government claimed relates only circumstantially to the mail, and Dolan’s accident, which was caused by the mail itself. In both cases the postal employee acted negligently while transmitting mail. In addition, the Court majority pointed to my panel’s recognition, which the government acknowledged, that focusing on whether the mail itself caused the injury would yield anomalies, perhaps making liability turn on whether a mail sack causing a slip and fall was empty or full, or whether a pedestrian sideswiped by a passing truck was hit by the side-view mirror or a dangling parcel.

It is more likely, Justice Kennedy contended, that Congress intended to retain immunity only for injuries arising because mail either fails to arrive or arrives late, in damaged condition, or at the wrong address, since such harms are primarily identified with the Postal Service’s function of transporting mail. The government claimed that, given the Postal Service’s vast operations, Congress must have intended to insulate delivery-related torts from liability; however, § 2680(b)’s specificity indicates otherwise. Justice Kennedy

said that had Congress intended to preserve immunity for all delivery-related torts, it could have used sweeping language similar to that used in other FTCA exceptions. By instead “carefully delineat[ing]” just three types of harm (loss, miscarriage, and negligent transmission), Congress expressed the intent to immunize only a subset of postal wrongdoing, not all torts committed in the course of mail delivery.³⁴

Furthermore, Justice Kennedy argued, losses of the type for which immunity is retained under the postal matter exception are at least to some degree avoidable or compensable through postal registration and insurance. When the government raised the specter of frivolous slip-and-fall claims inundating the Postal Service, Justice Kennedy dismissed this concern as a risk shared by any business making home deliveries. Finally, the Supreme Court majority stated that the general rule that a sovereign immunity waiver “will be strictly construed . . . in favor of the sovereign”³⁵ is “unhelpful” in the FTCA context, where “unduly generous interpretations of the exceptions run the risk of defeating the central purpose of the statute,” which “waives the Government’s immunity from suit in sweeping language.”³⁶

Justice Thomas Dissents

In dissent, Justice Thomas wrote:

The term in controversy here is “negligent transmission.” The crux of my disagreement with the majority is its failure to assign the term “transmission” its plain meaning. That term is defined as the “[a]ct, operation, or process, of transmitting.” Webster’s New International Dictionary 2692 (2d ed. 1934, as republished 1945). “Transmit” is defined as, *inter alia*, “[t]o send or transfer

from one person or place to another; to forward by rail, post, wire, etc.,...[t]o cause...to pass or be conveyed.” *Id.*, at 2692–2693. There is no cause to conclude that Congress was unaware of the ordinary definition of the terms “transmission” and “transmit” when it enacted the FTCA and the postal exception in 1946. Nor is there textual indication that Congress intended to deviate from the ordinary meaning of these terms. Accordingly, I would interpret the term “transmission” consistent with its ordinary meaning, and conclude that the postal exception exempts the Government from liability for *any* claim arising out of the negligent delivery of the mail to a Postal Service patron, including Dolan’s slip-and-fall claim.³⁷

A Brief Comment

In thinking about the approaches to statutory interpretation, the *Raila* and *Dolan* decisions are instructive. The Second Circuit’s decision and the Supreme Court’s decision sought to discern congressional meaning by understanding the context in which Congress legislated, focusing on common-sense construction of the words of the statute, keeping in mind a standard and well-applied concept embodied in the canon of *noscitur a sociis*—a word is given more precise content by the neighboring words with which it is associated. Indeed, Gluck and Bressman’s empirical study of legislative drafting confirms that while drafters may not use the formal term *noscitur a sociis*, they are familiar with it and routinely apply it.³⁸ In undertaking our interpretive task, my panel sought to understand the real-world purpose of the statutes; we performed a reality test of sorts, noting the absurdity of other interpretations resulting from a purely textual approach, and the Supreme Court majority, with Justice Thomas disagreeing, supported that reality testing. In Judge

Richard Posner's words, a "judge should try to put himself in the shoes of the enacting legislators."³⁹ If that is not possible, "then the judge must decide what attribution of meaning... will yield the most reasonable result... bearing in mind... that it is [the legislators'] conception of reasonableness, to the extent known, rather than the judge's, that should guide decision."⁴⁰

B. *UNITED STATES V. GAYLE*, 342 F.3D 89
(2D CIR. 2003), ENDORSED BY THE SUPREME
COURT IN *SMALL V. UNITED STATES*, 544
U.S. 385 (2005)

*Textualism's Limits: Whether "any court" in the phrase
"convicted in any court" means courts in the United States
only*

In *United States v. Gayle*, our panel (Joseph McLaughlin, Pierre N. Leval, and I) faced a statutory question for which there was no obvious answer—whether "convicted in any court" pertains to a conviction only in a court in the United States, or to a conviction in any court in the world. Arguments could be marshaled on both sides. Looking only at the text or to a dictionary could not provide a compelling key to interpretation—indeed, it could result in an interpretation that Congress did not mean. Thus, in this close case of statutory construction, we went beyond the text to examine context, including legislative history. Ultimately, the Supreme Court resolved the matter.

The basic facts were these. Rohan Ingram, who was a defendant along with Kirk Gayle and Ann-Marie Richardson, was arrested in a Plattsburgh, New York, hotel upon suspicion that he had illegally entered the United States from Canada. Soon after his arrest, authori-